

Strategic Legal and Procedural Analysis: Equal Status Act 2000-2018 Violations by An Garda Síochána and Preparation for WRC Public Adjudication

1. Executive Synthesis and Scope of Analytical Review

This comprehensive analytical report examines two distinct, yet systemically linked, incidents of alleged discrimination and failure to provide reasonable accommodation by An Garda Síochána (specifically the Galway Division, headquartered at Mill Street and Renmore). The incidents center on an individual diagnosed with Complex Post-Traumatic Stress Disorder (CPTSD), an acquired brain injury, and a severe anxiety disorder, who attempted to access statutory services provided by the State's law enforcement agency. The first incident involves the complainant's attempt to fulfil their legal obligation as a mandated person under the Children First Act 2015 by reporting an active incident of physical child abuse witnessed in a vehicle, providing a vehicle license plate via email due to their disability-related inability to physically enter a Garda station. The second incident involves the administrative refusal by the Garda Business Services division to process a Police Certificate application required for international academic progression, characterized by rigid adherence to internal policy and alleged hostile conduct by civilian Garda staff during a telephone interaction.

The primary objective of this report is to exhaustively synthesize the provided documentary evidence—comprising medical disclosures, institutional correspondence, and direct email exchanges with Garda personnel—and contextualize these materials within the prevailing statutory frameworks of the Republic of Ireland. Specifically, this analysis evaluates the actions of An Garda Síochána against the obligations established by the Equal Status Acts 2000-2018, the Children First Act 2015, the Victims Charter, and internal Garda policies governing accessibility and the Code of Ethics.

Furthermore, this report provides a detailed, strategic framework for the formulation of two ES.1 Notification forms. These forms serve as the mandatory statutory precursor to initiating public adjudication at the Workplace Relations Commission (WRC). The core thesis of this analysis demonstrates that An Garda Síochána's strict adherence to inflexible internal administrative procedures, coupled with an explicit refusal to enact nominal-cost accommodations for a severely documented disability, establishes a profound *prima facie* case for discrimination based on the failure to provide reasonable accommodation. The analysis demonstrates how institutional bureaucracy, when prioritized over statutory equality duties, not only unlawfully marginalizes disabled citizens but also actively obstructs the protection of vulnerable children.

2. Comprehensive Medical and Psychological Profile

of the Complainant

A successful adjudication before the Workplace Relations Commission requires incontrovertible proof of the complainant's disability, establishing the absolute legal necessity for the requested accommodations. The provided documentary evidence establishes a profound, multi-faceted, and chronic disability profile that directly impacts the complainant's ability to engage with traditional, high-stress administrative and law enforcement environments.

Document Title	Date of Issue	Issuing Authority/Professional	Core Diagnoses and Symptomatology	Impact on Service Access and Required Accommodations
Medical Report (Disability Profile)	October 20, 2017	Dr. James McLaughlin (Consultant Psychiatrist, Department of Psychiatry, University Hospital Galway)	Post Traumatic Stress Disorder (ICD-10: F43.1). Noted as a significant ongoing illness. Patient presented with a significant history of trauma and abuse.	Establishes the chronic nature of the psychiatric condition. Confirms severe limitations in engaging with environments that trigger traumatic recall.
Needs Assessment (LENS)	September 14, 2023	Maeve Mc Caldin (Disability Advisor, Access Centre, University of Galway)	Mental Health Disability causing severe anxiety, affecting concentration, fatigue, attention in lectures, and motivation.	Necessitates systemic structural accommodations, including alternative venues for examinations, extra processing time, and formalized leniency with administrative deadlines.
Student Counselling Reference	April 10, 2024 & May 30, 2024	James McCormack (Head of Student Counselling and Wellbeing, University of Galway)	Severe anxiety leading to profound avoidance behaviors in stressful, evaluative, or administrative situations (e.g., assignment deadlines, interviews).	Demonstrates a long-term historical precedent of the complainant requiring significant administrative flexibility and an inability to navigate rigid bureaucratic strictures without accommodation.
Complainant	April 16, 2026 &	Complainant Email	Myoclonic	Renders physical

Document Title	Date of Issue	Issuing Authority/Professional	Core Diagnoses and Symptomatology	Impact on Service Access and Required Accommodations
Testimony and Disclosure	April 30, 2026	Correspondence to An Garda Síochána	seizures, claustrophobia, stammering, emotional flashbacks, and permanent physical injuries (skull injury and fractured bone).	attendance at a specific physical location (Mill Street Garda Station) psychologically traumatizing and physically impossible due to historical associations with the venue.

The convergence of an acquired brain injury, Complex Post-Traumatic Stress Disorder (CPTSD), and physical injuries specifically linked by the complainant to historical interactions with An Garda Síochána creates a unique and highly sensitive legal paradigm. The disability is not merely incidental to the service being accessed; rather, the physical environment of the service provider—specifically the Mill Street Garda Station—operates as the direct trigger for severe psychiatric and neurological symptoms, including claustrophobia, debilitating emotional flashbacks, and stress-induced myoclonic seizures.

Consequently, the administrative demand for in-person attendance at a Garda station is not merely a standard bureaucratic hurdle; it functions as an absolute, insurmountable exclusionary barrier. The complainant's inability to enter the station is not a matter of preference or convenience, but a medically documented impossibility stemming from the very trauma the disability encompasses. This distinction is critical in Equal Status Act jurisprudence, as it shifts the requirement from a simple procedural adjustment to a fundamental necessity for access. When an individual's trauma is inextricably linked to the physical premises of the service provider, the provider is legally obligated to offer alternative avenues of service delivery, provided those avenues do not impose a disproportionate burden. The failure to do so transitions the interaction from administrative routine to active discrimination.

3. Statutory Architecture: The Equal Status Acts 2000-2018

The Equal Status Acts 2000-2018 form the cornerstone of anti-discrimination legislation in the Republic of Ireland outside the sphere of employment. These Acts prohibit discrimination in the provision of goods, services, accommodation, and educational establishments across nine protected grounds, one of which is disability. An Garda Síochána, in its capacity as a provider of public and administrative services to the State, is legally bound by these provisions and must ensure equitable access to its services for all citizens.

3.1 The Obligation of Reasonable Accommodation (Section 4)

The crux of the present analysis relies entirely on Section 4 of the Equal Status Acts. Section 4(1) explicitly defines discrimination as including "a refusal or failure by the provider of a service to do all that is reasonable to accommodate the needs of a person with a disability by providing special treatment or facilities, if without such special treatment or facilities it would be impossible or unduly difficult for the person to avail himself or herself of the service".

This statutory language creates a positive, proactive duty on service providers. It is not sufficient for An Garda Síochána to merely treat a disabled person the same as a non-disabled person if that identical treatment results in an unequal outcome or an inability to access the service. The law requires differential, specialized treatment to level the playing field. In the context of the complainant, the standard facility—walking into a Garda station to make a report or processing standard paperwork without deviation—makes availing of the service "impossible or unduly difficult" due to the documented CPTSD and trauma associations. Therefore, the legal trigger for the obligation to provide special treatment is unequivocally met.

3.2 The "Nominal Cost" Exemption and Burden of Proof

While the obligation to accommodate is robust, it is not absolute. Section 4(2) of the Act establishes the "nominal cost" threshold. A service provider is only exempt from providing a requested accommodation if they can demonstrate that such provision would give rise to a cost "other than a nominal cost" to the provider of the service in question.

In practical terms, the Workplace Relations Commission and the courts have interpreted "nominal cost" stringently. Accommodations that involve mere administrative flexibility, the waiving of internal bureaucratic rules, or the utilization of existing alternative procedures (such as accepting an email or conducting a home visit) generally incur zero financial cost. Precedent at the WRC underscores the strict obligation on State entities to implement appropriate and timely accommodations. For instance, in the landmark decision involving *Paul Hill v Department of Social Protection*, the WRC awarded substantial compensation for the State's failure to provide timely technological and spatial accommodations, emphasizing the fundamental obligation of public bodies to adapt to disability needs. Similarly, cases such as *Derbhála Dwyer v Avista clg* and *Siobhán McCoy v An Garda Síochána* reinforce that discrimination findings frequently stem from a rigid adherence to process over the individualized needs of the disabled person.

When An Garda Síochána refuses an accommodation (such as accepting a crime report via email from a disabled witness), the burden of proof shifts to the organization to mathematically and operationally demonstrate how reading an email or adjusting an administrative requirement exceeds the "nominal cost" threshold. Given the vast operational budget of the force and the zero-cost nature of digital communication, relying on this statutory defense is legally unsustainable in the present context.

4. Analysis of Incident 1: Refusal of the Child Protection Report

The first incident under review involves the intersection of mandatory child protection reporting, law enforcement procedures, and disability discrimination. This scenario highlights a severe systemic friction where the rigid application of standard policing protocols actively thwarted the protection of a vulnerable child and discriminated against a disabled citizen attempting to fulfill a

statutory duty.

4.1 Chronology and Fact Pattern of the Reporting Incident

The sequence of events is established by the exported email correspondence between the complainant and An Garda Síochána personnel in the Galway Division.

Date and Time	Initiating Actor	Action/Communication Detail	Evidentiary Source
April 16, 2026, 14:30	Complainant	Dispatches an email to multiple Garda addresses (GA.GalwayCity.CE, ga.crime, and specific officers) reporting physical child abuse witnessed in a vehicle near a commercial premises. Provides the vehicle's license plate (161-D-1214782). Explicitly identifies himself as a registered teacher fulfilling mandated reporting duties. Emphasizes that while he cannot identify the perpetrator, the Gardaí have the capacity to trace the vehicle.	
April 16, 2026, 14:58	Superintendent, Community Engagement	Replies formally refusing to accept the email report. Directs the complainant to "attend in person at a Garda Síochána station to formally report this matter, so an investigation can commence." Categorically states, "Reports of this nature cannot be accepted via email."	
April 16, 2026, 15:16	Complainant	Replies attaching extensive medical and legal documentation	

Date and Time	Initiating Actor	Action/Communication Detail	Evidentiary Source
		proving his disability. Explicitly invokes the Equal Status Act 2000-2018. Explains the physical and psychological impossibility of entering Mill Street station due to historical trauma and CPTSD. Warns that refusing the accommodation places the child's continued trauma on the institutional failure of the Gardaí.	
April 16, 2026, 15:38	Complainant	Transmits a follow-up email pleading for alternative reporting mechanisms. Asks if there is a digital form he can fill out at home, or if a delayed verification process can be arranged. Reiterates the severe symptoms of his disability, including myoclonic seizures, panic attacks, and claustrophobia, explaining why the "undisabled way" of reporting is impossible.	
April 20, 2026, 15:10	Complainant	Dispatches a final follow-up email noting the total lack of response from An Garda Síochána. Demands a formal acceptance or refusal of the requested reasonable accommodations under the Equal Status Act in writing, seeking clarity	

Date and Time	Initiating Actor	Action/Communication Detail	Evidentiary Source
		to proceed with formal complaints.	

4.2 The Mandated Reporter's Statutory Dilemma

The complainant in this incident is a registered teacher. Under the Children First Act 2015, registered teachers are classified as "mandated persons". Mandated persons possess a strict statutory obligation to report any knowledge, belief, or reasonable suspicion that a child has been, is being, or is at risk of being harmed (which includes physical assault). Failure to discharge this duty can result in professional and legal repercussions.

Standard reporting procedures dictate that mandated reports are submitted to Tusla (The Child and Family Agency) via their secure online web portal. However, the Tusla portal and the agency's investigative mechanisms require identifiable information about the child or the family to initiate a social work response. In the present scenario, the complainant witnessed a transient incident in a public space (a man hitting a child in a vehicle) and only possessed a vehicle license plate.

Tusla lacks the statutory authority and access to the National Vehicle and Driver File (NVDF) required to trace a license plate to an individual identity. Only An Garda Síochána possesses the policing powers to run a license plate, identify the registered owner, and intervene in an active or recent physical assault. Furthermore, national guidelines explicitly state that if a child is in immediate danger, or if the situation requires urgent intervention beyond the scope of a social work assessment, An Garda Síochána must be contacted directly. Therefore, the complainant correctly deduced that emailing the Gardaí with the license plate was the only legally and practically viable method to fulfill his mandated duty and protect the child.

4.3 Legal Analysis of the Discriminatory Refusal

The response from the Superintendent for Community Engagement—"Reports of this nature cannot be accepted via email" and the demand to "attend in person"—represents the triumph of rigid administrative policy over both child protection imperatives and equality law. While it is standard Garda procedure to prefer in-person statements to verify identity and capture signatures for evidential purposes, this internal protocol does not supersede national equality legislation.

When the complainant subsequently disclosed his profound disabilities (CPTSD, acquired brain injury) and explained that physical attendance at the station was a psychological and physical impossibility, the Gardaí were legally triggered to consider reasonable accommodations under Section 4 of the Equal Status Acts. The complainant proposed multiple highly reasonable accommodations:

1. Acceptance and immediate actioning of the initial report via email based on the license plate provided.
2. Provision of a digital or PDF form to be completed and signed remotely.
3. Arranging an alternative venue or a delayed, remote method for follow-up verification.

The absolute failure of the Gardaí to respond to these requests or offer any alternative constitutes a severe breach of the Act. The cost to An Garda Síochána to implement any of these accommodations is functionally zero. A Garda analyst or dispatcher could easily run the provided license plate through the PULSE system and dispatch a welfare check to the

registered address. The refusal to take this nominal-cost action because the information arrived via email from a disabled person is discriminatory.

Furthermore, the Garda refusal directly contradicts their own published policies and the Victims Charter. The Victims Charter explicitly guarantees that An Garda Síochána will take specific needs or requirements into account for individuals with disabilities. Citizens Information guidance regarding the reporting of crimes in Ireland confirms that if an individual is unable to go to a Garda Station, they may ask that a Garda come to their home to take a report. The failure of the respondent to even offer this pre-existing, standard alternative demonstrates a complete disregard for both their own policies and their statutory equality duties.

By actively obstructing a disabled mandated person from discharging their statutory duty, An Garda Síochána has created an indefensible legal paradox. The State (via the Children First Act) demands the reporting of child abuse under threat of sanction, while the State (via An Garda Síochána) simultaneously erects discriminatory physical and bureaucratic barriers preventing the disabled citizen from complying with that exact mandate. This systemic friction leaves a vulnerable child at continued risk of physical abuse and exposes the State to severe reputational damage and legal liability at the Workplace Relations Commission.

5. Analysis of Incident 2: Administrative Obstruction of the Police Certificate

The second incident under review transitions from operational policing to administrative service provision. It involves the refusal by the Garda Business Services division to process a Police Certificate application, characterized by pedantic adherence to internal guidelines and highly problematic conduct by civilian staff towards a neurodivergent applicant.

5.1 Chronology and Fact Pattern of the Administrative Incident

The sequence of events is detailed in the exported email chain and the complainant's documentation regarding their interactions with the Business Services division in Galway.

Date and Time	Initiating Actor	Action/Communication Detail	Evidentiary Source
April 29, 2026	Joanne Dillon (Garda Civilian Staff)	Contacts the complainant by telephone to verify details on the Police Certificate application form. The complainant alleges that during the call, despite disclosing his disability and actively experiencing a stress-induced myoclonic seizure, the staff member maintained a hostile, sarcastic tone	

Date and Time	Initiating Actor	Action/Communication Detail	Evidentiary Source
		(repeatedly saying "sorry?") and intermittently muted the call, exacerbating the medical event.	
April 30, 2026, 13:45	Lisa Madden (Higher Executive Officer, Business Services, Galway Division)	Dispatches an email formally refusing the processing of the Police Certificate. Demands a recent, specifically dated academic offer from King's College London (KCL) and supporting documents from Canadian authorities, rigidly quoting internal policy regarding academic engagement.	
April 30, 2026, 14:28	Complainant	Transmits a detailed, legally robust reply explicitly invoking Section 4 of the Equal Status Act 2000-2018. Explains that his CPTSD and trauma from previous administrative failures make it psychologically impossible to re-initiate the KCL application without the certainty of the Police Certificate. Demands an administrative waiver as a reasonable accommodation based on historical academic evidence (deferred offer, DfE withdrawal notice, deferred £31,000 scholarship). Extensively outlines the severe medical and psychological impact of	

Date and Time	Initiating Actor	Action/Communication Detail	Evidentiary Source
		Joanne Dillon's phone call, citing breaches of the Garda Code of Ethics.	

5.2 The Mechanics of Indirect Discrimination in Administrative Policy

The application for a Police Certificate is an administrative service provided by An Garda Síochána, governed by specific criteria. Certificates are issued only for limited purposes, including establishing a business in the EU, consular/visa requirements, and specific academic engagements. The policy regarding academic programs requires proof that the applicant is participating in an accredited academic programme on a full-time basis for a minimum of one year outside the jurisdiction.

The Business Services division, represented by Higher Executive Officer Lisa Madden, adhered rigidly to the absolute letter of this policy. Despite the complainant providing extensive contextual evidence—including a deferred offer, a Department for Education (DfE) withdrawal notice, and a deferred £31,000 British Computing Society scholarship—the Gardaí demanded newly dated correspondence directly from King's College London confirming the immediate reuptake of the offer.

This scenario epitomizes indirect discrimination under the Equal Status Acts. Indirect discrimination occurs when an apparently neutral rule, policy, or practice puts a person with a protected characteristic at a particular disadvantage compared with others. The administrative rule—requiring a current, newly dated academic offer before issuing a certificate—appears neutral. However, it places a person with the complainant's specific psychiatric disability at a profound disadvantage. The complainant's Needs Assessment and medical profile document severe anxiety triggered by bureaucratic uncertainty and trauma-induced avoidance behaviors. The complainant explicitly articulated that it was psychologically impossible to navigate the high-stress re-application process with KCL without the foundational security of possessing the Police Certificate first.

The requested accommodation was straightforward: the complainant asked the Gardaí to grant an administrative waiver, accepting the deferred scholarship and historical academic evidence in lieu of a newly dated offer, as a reasonable accommodation under Section 4. The financial cost of an Assistant Principal or Superintendent reviewing the provided PDFs and exercising discretion to sign the certificate is €0.00. Therefore, the Gardaí cannot rely on the "nominal cost" defense to justify their refusal. Pretending that discretionary power does not exist, or ignoring the statutory framework of the Equal Status Act in favor of a rigid internal policy manual, is a direct breach of equality law.

5.3 Harassment, Misconduct, and the Code of Ethics

A deeply concerning component of this incident is the telephone interaction with civilian staff member Joanne Dillon. The complainant alleges that despite explicit disclosure of his disability, and the active onset of a myoclonic seizure during the call (a symptom explicitly linked to his brain injury and trauma), the staff member engaged in hostile and dismissive behavior. The complainant noted the staff member used a sarcastic tone, repeatedly feigned an inability to hear ("sorry?"), and intermittently muted the call out of spite, forcing the complainant to repeat

himself while navigating a neurological event.

Under the Equal Status Acts, harassment based on a protected ground (disability) is explicitly unlawful. Harassment is defined as unwanted conduct related to any of the discriminatory grounds that has the purpose or effect of violating a person's dignity and creating an intimidating, hostile, degrading, humiliating, or offensive environment. The behavior described during the phone call crosses the threshold from administrative inflexibility into active harassment.

Furthermore, this conduct constitutes a severe failure to adhere to the Garda Code of Ethics. The Code, which applies to both sworn members and civilian staff, strictly mandates "Empathy" and "Respect" for all people, emphasizing the protection of human rights and the need to demonstrate particular sensitivity and support for vulnerable people and minority groups. The deliberate exacerbation of a disclosed medical event through aggressive communication tactics is a severe disciplinary matter. This aspect of the incident requires not only inclusion in the WRC ES.1 form as an aggravating factor of discrimination and harassment but also warrants a parallel complaint to the relevant oversight body.

6. WRC Adjudication Preparation: Strategic Formulation of ES.1 Notifications

To transition these grievances from unresolved administrative disputes to formal public adjudication before the Workplace Relations Commission, the complainant must satisfy strict procedural prerequisites. The primary requirement is the submission of a Form ES.1 (Notification of Intention to Seek Redress under the Equal Status Acts).

The ES.1 must be sent directly to the respondent (An Garda Síochána) within two months of the last incident of discrimination. For Incident 1, this deadline is June 16, 2026. For Incident 2, the deadline is June 30, 2026. The notification must clearly outline the nature of the allegation and the intention to seek redress. The respondent may reply using form ES.2 within one month, after which the complainant has up to six months from the date of the incident to lodge the formal complaint via the WRC online portal.

A critical element of the ES.1 form is Section 6, which allows the complainant to make specific requests for information. If the respondent fails to reply, or provides evasive or misleading information, the Adjudication Officer can draw adverse inferences during the hearing. The following outlines provide the exhaustive, legally precise text to be utilized in the respective ES.1 forms.

6.1 ES.1 Draft Outline: Case 1 (Obstruction of Child Protection Reporting)

1. Complainant Details:

- Name: Cian Mac Liatháin Uí Dhéisigh
- Address: [Complainant's Address]

2. Respondent Details:

- Name: An Garda Síochána (Represented by Superintendent Paudie O'Shea, Galway City Community Engagement)
- Address: Mill Street Garda Station, Galway City, H91 FX61

3. Circumstances of the Complaint (Factual Summary):

- **Date(s) of Incident:** April 16, 2026 to April 20, 2026.
- **Ground of Discrimination:** Disability (Acquired Brain Injury, Complex PTSD, Severe Anxiety Disorder, Myoclonic Seizures).
- **Nature of the Complaint:** Direct and Indirect Discrimination, and Failure to Provide Reasonable Accommodation under Section 4(1) of the Equal Status Acts 2000-2018 in the provision of a statutory State service.
- **Detailed Narrative:** On April 16, 2026, I attempted to access the services of An Garda Síochána to report an active incident of physical child abuse (a man striking a child in a vehicle), acting in my strict legal capacity as a mandated person under the Children First Act 2015. Because I only possessed the vehicle's license plate (161-D-1214782) and not the identity of the perpetrator, reporting via the Tusla portal was insufficient; only An Garda Síochána possesses the policing powers to trace the vehicle and intervene. Due to my severe, medically documented disabilities—which include profound trauma explicitly triggered by historical incidents at Garda stations—I am physically and psychologically unable to enter a station voluntarily. I submitted the actionable intelligence via email. The respondent summarily refused to accept the report, rigidly demanding my physical attendance. Despite my immediate written disclosure of my disability, the provision of extensive medical evidence, and explicit requests for reasonable accommodations (e.g., remote digital reporting, acceptance of the email, or a home visit), the respondent completely failed to accommodate me or reply to subsequent communications. This failure occurred despite the requested accommodations carrying zero financial cost, thus failing the "nominal cost" exemption in Section 4(2) of the Act. The respondent's discriminatory actions actively obstructed my statutory duty to protect a vulnerable child and entirely excluded me from accessing essential law enforcement services.

4. Request for Information (Section 6): Under Section 6 of the Equal Status Acts, I require precise answers to the following questions to assist in determining whether to proceed to formal WRC adjudication :

1. Please outline the precise financial and operational cost to An Garda Síochána that would have been incurred by running the provided license plate through the PULSE system based on an email report, and explain exactly how this action exceeds the "nominal cost" threshold under Section 4(2) of the Equal Status Acts?
2. Please provide An Garda Síochána's official, written policy regarding the intersection of the Children First Act 2015 and the Equal Status Acts 2000-2018 in scenarios where a disabled mandated person cannot physically attend a station to report a crime.
3. Why was the standard accommodation of a home visit—as explicitly outlined in national guidelines and the Victims Charter for disabled victims or witnesses of crime—not offered to me upon my written disclosure of my inability to attend the station?
4. Who made the specific administrative decision to ignore my subsequent emails requesting accommodation on April 16 and April 20, 2026, and on what legal basis was this decision made?

6.2 ES.1 Draft Outline: Case 2 (Administrative Obstruction of Police Certificate)

1. Complainant Details:

- Name: Cian Mac Liatháin Uí Dhéisigh
- Address: [Complainant's Address]

2. Respondent Details:

- Name: An Garda Síochána (Represented by Lisa Madden, HEO, Business Services, Galway Division / Chief Superintendent Gerry Roche)
- Address: North Western Region Headquarters, Dublin Road, Renmore, Galway H91 F62K

3. Circumstances of the Complaint (Factual Summary):

- **Date(s) of Incident:** April 29, 2026 to April 30, 2026.
- **Ground of Discrimination:** Disability (Acquired Brain Injury, Complex PTSD, Severe Anxiety Disorder, Myoclonic Seizures).
- **Nature of the Complaint:** Indirect Discrimination, Harassment, and Failure to Provide Reasonable Accommodation under Section 4(1) of the Equal Status Acts 2000-2018.
- **Detailed Narrative:** I applied to the Business Services division for a Police Certificate required for international academic progression. Due to CPTSD and severe anxiety stemming from previous administrative trauma, it is psychologically impossible for me to undergo the high-stress academic re-application process without first securing the foundational certainty of this certificate. I provided comprehensive evidence of my academic standing, including a deferred offer, a withdrawn DfE notice, and a deferred £31,000 scholarship. The respondent rigidly applied internal policy, demanding newly dated correspondence, and explicitly ignored my written request for a reasonable accommodation (specifically, an administrative waiver based on the provided historical evidence). Furthermore, on April 29, 2026, a member of civilian Garda staff (Joanne Dillon) contacted me by phone against my written instructions. Upon my disclosure that I was actively experiencing a trauma-induced myoclonic seizure, the staff member engaged in hostile, sarcastic behavior (intermittently muting the call and feigning ignorance) that severely exacerbated my medical condition. This conduct constitutes harassment on the ground of disability. The refusal to provide an administrative waiver—which costs €0.00 to execute—fails the "nominal cost" test, violates equality law, and effectively bars me from accessing tertiary education.

4. Request for Information (Section 6):

1. Please explain the specific legal rationale upon which An Garda Síochána believes that internal administrative guidelines regarding Police Certificate documentation supersede the statutory supremacy of Section 4(1) of the Equal Status Acts 2000-2018 when a disability accommodation is formally requested.
2. What specific financial cost, other than a nominal cost, would have been incurred by an authorized officer in Business Services granting an administrative waiver and accepting the deferred scholarship and historical academic evidence as proof of engagement?
3. Please provide any audio recordings, contemporaneous notes, or PULSE logs relating to the phone call made by Joanne Dillon to me on April 29, 2026. (Please note: A parallel Data Subject Access Request (DSAR) will be filed under the GDPR for this specific data).
4. What specific training has Lisa Madden and Joanne Dillon received regarding the provision of reasonable accommodations for neurodivergent individuals, compliance with the Equal Status Acts, and adherence to the empathy requirements of the Garda Code of Ethics?

7. Collateral Accountability Mechanisms: Fiosrú (The Office of the Police Ombudsman)

While the Workplace Relations Commission is the appropriate statutory venue for litigating the

failure to provide a service and reasonable accommodation under the Equal Status Acts, the behavioral conduct of the personnel involved—specifically during the phone call on April 29, 2026—must be addressed through the State's dedicated police oversight mechanisms.

A formal complaint should be lodged concurrently with Fiosrú (formerly the Garda Síochána Ombudsman Commission - GSOC). Fiosrú possesses the statutory mandate to investigate complaints from the public regarding the conduct of both sworn Gardaí and civilian staff attached to the force.

The complaint to Fiosrú should specifically allege a severe breach of the Garda Code of Ethics. The Code mandates that all personnel exhibit "Empathy" and "Respect" for all individuals, particularly those with invisible vulnerabilities or disabilities. The deliberate exacerbation of a disclosed medical event (a myoclonic seizure) through hostile communication tactics—such as feigning an inability to hear and intermittently muting a distressed caller—is not merely poor customer service; it is a profound disciplinary matter.

This Fiosrú complaint should be filed simultaneously with the dispatch of the WRC ES.1 notifications. The processes are complementary rather than mutually exclusive. The initiation of a Fiosrú investigation creates an independent, state-backed paper trail regarding the conduct of the civilian staff member, the findings of which can serve as highly compelling collateral evidence of victimisation and harassment during the subsequent WRC public adjudication.

8. Strategic Conclusions and Implications for State Liability

The documentary evidence provided reveals a profound systemic failure within the Galway Division of An Garda Síochána to reconcile rigid administrative policing procedures with the statutory demands of national equality legislation. In both the refusal to accept a critical, mandated child protection report and the rejection of a standard administrative certificate, the respondents relied exclusively on internal policy manuals while entirely disregarding their overarching legal obligations under Section 4 of the Equal Status Acts 2000-2018.

This approach represents a significant miscalculation of legal liability by the service provider. Because the accommodations requested by the complainant—accepting an email, arranging a home visit, or executing an administrative waiver on a form—require zero financial expenditure, the State cannot rely on the statutory "nominal cost" defense to justify the discrimination. The refusal to act is rooted in bureaucratic inflexibility rather than operational necessity or financial burden.

The formulation and immediate dispatch of the two drafted ES.1 Notification forms via registered post are the critical next steps. These documents legally crystallize the dispute, forcing An Garda Síochána to formally justify their rigid adherence to policy in the face of severe disability disclosures. By transitioning these grievances from internal administrative complaints to formal, public adjudication before the Workplace Relations Commission, the complainant establishes the necessary legal framework to enforce the supremacy of equality law over operational bureaucracy, seeking both remedial compensation and structural change in how law enforcement interacts with neurodivergent citizens.

Works cited

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